HIGH COURT OF JUDICATURE AT ALLAHABAD

APPELLATE JURISDICTION · SINGLE JUDGE

Criminal Misc. Anticipatory Bail Application No. 12984 of 2024 CNR: AHC010129842024

Date: 22 April, 2024 *Citation: 2024:AHC:12984*

CORAM: Hon'ble Krishan Pahal, J.

Petitioner: Manoj Kumar

- VERSUS -

Respondent: State of U.P. & Informant

DOMAIN: ANTICIPATORY BAIL & POLICE NOTICE **STATUS: Good Law (Binding HC Bail Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Investigating officers are bound by the mandatory dictates of Section 41A CrPC as reiterated in Arnesh Kumar and Satender Kumar Antil. Arrest without justifiable recording of reasons for offences punishable up to 7 years entitles the applicant to pre-arrest bail.

STATUTES APPLIED: Section 438 CrPC, Section 41A CrPC, Section 420 IPC, Section 406 IPC

DISPOSITION: ANTICIPATORY BAIL GRANTED WITH COOPERATION CONDITIONS

EXECUTIVE RATIO SUMMARY:

Justice Krishan Pahal granted anticipatory bail applying Satender Kumar Antil and Arnesh Kumar, holding that where offences carry punishment under 7 years and police fail to serve Section 41A CrPC notice, custodial arrest is unjustified.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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